



POLICE DEPARTMENT

December 8, 2025

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In the Matter of the Charges and Specifications	:	Case No.
- against -	:	C-031791
Police Officer Donald Aridas	:	
Tax Registry No. 939882	:	
19 th Precinct	:	

-----X

At: Police Headquarters
One Police Plaza
New York, NY 10038

Before: Honorable Paul M. Gamble, Sr.
Assistant Deputy Commissioner Trials

APPEARANCES:

For the CCRB-APU:

Rebecca Hausner, Esq.
Daniel Hafner (*Law Student Practitioner*)
Civilian Complaint Review Board
100 Church Street, 10th Floor
New York, NY 10007

For the Respondent:

Stuart London, Esq.
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To:

HONORABLE JESSICA S. TISCH
POLICE COMMISSIONER
ONE POLICE PLAZA
NEW YORK, NY 10038

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CHARGES AND SPECIFICATIONS

1. Police Officer Donald Aridas, on or about August 28, 2021, at approximately 1530 hours, while assigned to the 19th Precinct and on duty, in the vicinity of 650 Madison Avenue on East 59th Street, New York County, wrongfully used force, in that he used pepper spray against Lydia Guzman without police necessity.

P.G. 221-07, Page 1

USE OF OLEORESIN
CAPSICUM PEPPER
SPRAY DEVICES

2. Police Officer Donald Aridas, on or about August 28, 2021, at approximately 1530 hours, while assigned to the 19th Precinct and on duty, in the vicinity of 650 Madison Avenue on East 59th Street, New York County, abused his authority as a member of the New York City Police Department, in that he did not obtain medical treatment for Lydia Guzman when requested, without sufficient legal authority. (*As amended*)

A.G. 304-06, Page 1, Paragraph 1

PROHIBITED CONDUCT

P.G. 221-07, Page 2

USE OF OLEORESIN
CAPSICUM PEPPER
SPRAY DEVICES

REPORT AND RECOMMENDATION

The above-named member of the Department appeared before me on October 24, 2025. Respondent, through his counsel, entered a plea of Not Guilty to the subject charges. The CCRB called Lydia Guzman as a witness. Respondent testified on his own behalf. A stenographic transcript of the trial record has been prepared and is available for the Police Commissioner's review. Having evaluated all the evidence in this matter, I find Respondent Not Guilty.

ANALYSIS

Introduction

This case arose from a contentious traffic enforcement situation which devolved into a physical confrontation and the use of force. Respondent was on a solo patrol performing traffic duties and became enmeshed in an encounter with a driver, JM [REDACTED] who took exception

to being cited for double-parking his BMW during rush hour on 59th Street, between Fifth and Madison Avenues. JM's [REDACTED] passenger, Lydia Guzman, was initially a mere bystander, then became the subject of Respondent's use of pepper spray when she entered the BMW and sat in the driver's seat as the confrontation continued to escalate. Two other individuals, who were apparently associates of JM [REDACTED] and Ms. Guzman, observed the encounter and joined in JM's [REDACTED] criticism of the performance of Respondent's duties. After Respondent deployed his pepper spray, his partner, Police Officer Vincent Ching, arrived on scene and assisted Respondent in completing several summonses and requesting medical assistance for Ms. Guzman. Sergeant Taleb Hossain, a patrol supervisor, eventually responded to the scene and supervised the resolution of the encounter.

The issues before the Tribunal are: (1) whether Respondent's use of pepper spray against Ms. Guzman was reasonable and due to police necessity; and (2) whether Respondent requested medical assistance for Ms. Guzman in a timely manner.

Respondent

Respondent testified that he has been a Member of Service for almost 20 years. On August 28, 2021, he was assigned to the Madison Avenue business post on the "4 to 12" tour in the 19th Precinct. He was working with a partner, Police Officer Vincent Ching, but they were each assigned a separate Smart car to maximize their presence on Madison Avenue. Respondent's Smart car was outfitted with a light package atop the vehicle and had an air horn, but did not have a siren (T. 75-78).

At approximately 1530 hours, Respondent was in the vicinity of 650 Madison Avenue on 59th Street. He had been driving southbound on Fifth Avenue before turning onto 59th Street, with the intention of turning onto Madison Avenue so that he could patrol in a northbound

direction. Respondent noticed a BMW driving “very slowly” on 59th Street with its hazard lights on. He explained that at that time of day, there were not supposed to be any parked vehicles on either the north or south sides of 59th Street, leaving three lanes available for traffic. According to Respondent, the north and south sides of 59th Street at that point are “No Standing” zones (T. 78-79).

Respondent testified that he observed the BMW coming to a stop and the driver, JM [REDACTED] stepping out of the car; when Respondent activated his air horn, JM [REDACTED] made a gesture for Respondent to drive around the BMW. He testified that he interpreted JM's [REDACTED] gesture as being indifferent to the fact that a police vehicle was directing him to move his car. Respondent then turned his Smart car so that it was perpendicular to the curb, and pointed toward traffic, as a signal to JM [REDACTED] that he was about to enforce the parking regulations and to reconsider his decision to leave the BMW where it was. He began walking toward JM [REDACTED] to give him a verbal warning to move the BMW as he began issuing summonses for the cars parked illegally on the north side of 59th Street (T. 80-81).

Respondent testified that JM [REDACTED] was several inches taller and about 50 pounds heavier than he was, as well as being significantly younger (T. 82-83). He testified that he considered himself overmatched physically in this situation and the only protection he had was “this uniform and whatever I have on my belt” (T. 83). Respondent testified that he started to issue a warning to JM [REDACTED] but was met with combativeness, as JM [REDACTED] told Respondent to walk around him, “like he has a right to stand in the street” (*Id.*). He decided at that point that he had given JM [REDACTED] sufficient warning to move his BMW and elected to issue a summons. He took out his summons book and immediately wrote down the license plate number (T. 84).

Respondent testified that JM walked toward him and got “very, very close” and appeared to be attempting to block his license plate from Respondent’s inspection (*Id.*). He testified further that JM squeezed between him and the BMW, standing directly in front of the license plate (T. 84-85). Respondent testified that JM then said, “You’re lucky I don’t take that pen out of your hand” (T. 85). He testified that JM criticized the way he parked his Smart car, saying, he “park[ed] like a bozo” (T. 86).

Respondent denied that he ever told Ms. Guzman that she could leave. He explained that when JM stated, “You’re writing a ticket,” Respondent replied that he was writing the vehicle a ticket, and did not need JM’s identification, preferring that he would “go away.” It was at that point that JM told Respondent that he was going to drive away. Respondent testified that he then positioned himself to stand in front of the BMW’s driver’s door to prevent JM from driving the car away from the scene (T. 87-88).

He testified further that, unbeknownst to him, Ms. Guzman, who had been standing outside the BMW, re-entered the car from the passenger side and maneuvered herself into the driver’s seat (T. 89). Once Respondent noticed that she had moved to the driver’s seat, he became concerned that she was going to drive the BMW away, so he grabbed the door handle and pulled the driver’s door open (*Id.* at 89, 101, 103). He testified that he said, “Ma’am, you can’t go,” and that JM then grabbed Respondent’s hand and pulled it off the door handle, before slamming the door shut (T. 90, 109-10).

Respondent testified further that JM appeared to be puffing his chest up, then began approaching Respondent; Respondent backed up and reached for his pepper spray because he perceived JM as a threat. As he backed up, Respondent fell to the ground and dropped his pepper spray; when he looked up, he saw that the BMW’s headlights were at his

eye-level. He testified that he retrieved his pepper spray and rose to his feet; as he stood up, he realized that if Ms. Guzman drove the car forward, he would be pinned between it and the car parked at the curb, which was directly behind him (T. 90. 110-11).

Respondent testified that, in an attempt to regain control of the situation, he pointed his pepper spray at Ms. Guzman as she sat in the driver's seat; when he saw her window going up, he realized that because of the heavy tint, he would be unable to see inside the BMW if it closed completely. In the hope of deterring Ms. Guzman from attempting to drive away, Respondent discharged the pepper spray canister into the open car window. He testified that his concern was if the driver's side mirror hit him and knocked him to the ground, he would be immobilized, the rear wheels of the BMW would roll over his legs and leave him vulnerable to a group of people with whom he had been having an acrimonious exchange (T. 91-92).

Respondent recalled that he saw Ms. Guzman coughing when she got out of the BMW, but she did not request medical attention at that time or later. He testified that once Police Officer Ching arrived and he felt safer, he did ask Ms. Guzman if she wanted medical attention but she did not respond; instead, JM put up his hand, as if he forbade Respondent from speaking to Ms. Guzman directly (T. 92-93). According to Respondent, it was Police Officer Ching who asked Ms. Guzman whether she wanted medical attention; Respondent testified that he did not hear the response she gave. Respondent detailed that when an ambulance arrived, the police officers attempted to walk Ms. Guzman to it but Sergeant Hossain stopped her from going to the ambulance until he evaluated whether she would be arrested (T. 94).

Respondent testified that he issued JM summonses for double-parking and disorderly conduct; after conducting a driver's license check, he learned that JM's driving privileges had been suspended. He conducted a registration check of the BMW and

learned that its registration had expired almost nine months earlier. Respondent recounted that he contemplated arresting JM [REDACTED] for Obstruction of Governmental Administration and Unlicensed Operation of a Motor Vehicle, but Sergeant Hossain suggested that he exercise discretion, and issue only the double-parking and disorderly conduct summonses (T. 95-98).

Respondent contended that he discharged his pepper spray toward Ms. Guzman because he believed there was police necessity to do so; he also asserted that he offered her medical treatment, but she never responded to his offer (T. 99-100).

On cross-examination, Respondent acknowledged that he uttered the phrase, "if she wants to drive away it's no problem because the ticket's already been written," but explained that he was interrupted by JM [REDACTED] before he could complete his statement (T. 104, 130). He acknowledged that while he uttered those words, he then changed his mind and said Ms. Guzman could not leave (T. 109). He denied that he could have issued the summons if the BMW had been driven away because the summons contains a jurat, where, under the penalties of perjury, Respondent would have to assert that he personally affixed the summons to the vehicle (T. 105-06). Respondent testified that he had never been advised before this incident that he could mail a parking summons; he consulted with an executive after the incident who did advise him that he could do so, but he never showed Respondent any authority under the Patrol Guide for that proposition (T. 107-08).

Respondent acknowledged that he had been trained in Departmental policies on the use of force, and, in particular, the use of pepper spray. He further acknowledged that at the time he discharged his pepper spray, Ms. Guzman was not under arrest or detained; she had not manifested any physical or verbal hostility toward him; and she was attempting to calm JM [REDACTED] [REDACTED] (T. 111-12). Respondent reiterated his assertion that he deployed the pepper spray

against her because he was afraid that she would drive the BMW toward him and injure him; he denied using the pepper spray to try to keep her from driving so that he could affix a summons to the vehicle (T. 113). He confirmed that as he held the pepper spray, he uttered the words, "I wouldn't move" (T. 114).

Respondent testified further that when he discharged the pepper spray toward Ms. Guzman, it was because he could not see into the BMW, due to the tinted windows, to see what, if anything she was doing; he believed the engine was on because he saw the running lamps on when he fell in front of the car; and she began rolling up the driver's window (T. 115-18). He denied that he could have moved away from the BMW rather than discharging his pepper spray because he had no avenue of escape: he could not move to his right, as there was a parked car there and he could not move to his left, as that would place him in front of the car he was trying to avoid (T. 120-21).

Respondent acknowledged that when he saw Ms. Guzman emerge from the BMW after he deployed his pepper spray, he heard her cough. He testified that he had no independent recollection of her stating "he sprayed me in my mouth," but did not dispute the body-worn camera recording that captured her statement (T. 122).

Respondent acknowledged that he called for backup from other police officers while he was standing on the side of the BMW; that his partner, Police Officer Ching, had called him on his mobile phone during the encounter but he did not answer his initial call; and that he eventually spoke with Police Officer Ching on his mobile phone after he deployed the pepper spray. Respondent conceded that during the call with Police Officer Ching, he did not tell him that he had deployed his pepper spray; Respondent explained that he was still attempting to fill out the summons as JM was berating him and was focused on that task. He further

acknowledged that it was not until Police Officer Ching arrived on scene that Respondent asked him if he would call for an ambulance (T. 123-24). Respondent acknowledged that the Patrol Guide required him to request medical assistance after deploying his pepper spray once the situation was under control, but he was unaware of whether he was also obligated to inform the person who had been pepper-sprayed that medical assistance had been requested (T. 125-126).

Body-Worn Camera Evidence

The following is a summary of the relevant portions of Respondent's body-worn camera recording, in evidence as CCRB's Exhibit 1.

- 01:00-01:17** Respondent exits the RMP, saying, "I'm going to start writing tickets," and approaches the left rear passenger door of a double-parked car. JM [REDACTED] replies, "I understand that. I just pulled up, and you popped up." Respondent responds, "Yours is not necessarily the first one I'm going to write." JM [REDACTED] blocks Respondent's path to the front of the car, repeating, "I just pulled up," while Respondent raises his hand and says repeatedly, "Excuse me." JM [REDACTED] replies, "What?" Respondent says, "I would like to walk past you," and JM [REDACTED] responds, "You just walked this way. You should've walked that way," pointing right.
- 01:18-01:32** JM [REDACTED] says, "My car is right here," as a male associate touches his arm and speaks inaudibly. Respondent steps back, saying, "I'm going to write the ticket." JM [REDACTED] tells the associate, "He walked up on me, bro!" makes a few inaudible comments, then says, "I'm gonna smack the sh*t out of this n*gger right now," stepping toward Respondent, and twice tells Respondent to move.
- 01:33-01:57** JM [REDACTED] walks between Respondent and the rear of the car, blocking the license plate, and tells his associate, "This n*gger is lucky I don't take the paper out his hand bro," then yells, "Look how you're parked though. You're parked like a Bozo!" and "You're talking about me." Respondent moves past him, saying, "All I want to do is write this ticket right here." JM [REDACTED] replies, "That's fine, but you told me to move out of the way while I'm standing here already," then complains, "You could've walked that way, bro! You're being a d*ck right now, bro! Like you being real annoying for no reason." Respondent continues writing.
- 01:58-02:22** Lydia Guzman, JM's [REDACTED] girlfriend, appears at the rear of the car and asks, "Babe, what's he giving you a ticket for?" JM [REDACTED] explains as a

bystander drives by, making an inaudible comment, and they have a disagreement while Respondent writes.

02:23–03:08

JM [REDACTED] turns to Respondent and states, "I'll take the ticket." Respondent replies, "It's going to take a while." JM [REDACTED] replies, "Well, I'll be gone by that time," twice says "Excuse me," trying to pass toward the driver's seat. Ms. Guzman repeatedly asks, "Why is he getting a ticket?" The male associate warns JM [REDACTED] "Don't touch him unless . . . he'll say you assaulted him." Respondent and JM [REDACTED] continue to dispute until JM [REDACTED] asks, "Can I get by you?" and the associate repeats, "Excuse me officer, can he get by you?" JM [REDACTED] continues berating Respondent, walks around the car, and the associate encourages, "just go around, bro." Respondent stands in front of the driver's door; JM [REDACTED] returns, asking, "Why are you right in front of my door?"

03:09–03:30

JM [REDACTED] walks toward Respondent, saying, "Don't do that. Move," stopping face-to-face. Respondent replies, "No. No." JM [REDACTED] says, "You're right in front of my door. What are you doing? What is he doing?" and "Bro, why are you blocking the car?" Ms. Guzman and the male associate stand behind him as Respondent calls for backup. JM [REDACTED] continues demanding, "Why is he blocking the car?" and the associates tell him to relax and move aside. The male associate tells Ms. Guzman, "Lydia, go on the other side and drive." Ms. Guzman continues to try and calm JM [REDACTED]

03:38–04:12

[REDACTED] asks again why Respondent is blocking the door. Respondent replies, "Sir, if I were you, I would step away." A bystander asks, "Why can't he get in his car?" Respondent replies, "Because he says he's going to drive away and I'm still writing the ticket." As JM [REDACTED] and Respondent continue to disagree, Ms. Guzman has moved to the passenger side of the car behind Respondent and JM [REDACTED] gestures to her, whispering, "just go." Respondent exclaims, "There's already other people coming."

04:13–04:38

Respondent says, "The plates are on the ticket. The plates are on the camera. You're on the camera. Everything's been done," then turns to the car, "If she wants to drive away, it's no problem because the ticket's already been written," referring to Ms. Guzman. JM [REDACTED] shouts, "Go, Babe," then asks, "ok, so why didn't you let me get in the car in the first place?" urging, "Go! Go! Now!" Respondent then exclaims, "She can't go." JM [REDACTED] replies, "Leave Lydia!" The car does not move.

04:39–04:58

Respondent repeats, "You can't go," and opens the driver's door. JM [REDACTED] removes Respondent's hand from the handle, saying, "Hold on, don't f*cking (inaudible)," slams the door, blocks Respondent, and urges Ms.

Guzman to drive, saying, "Bro. Go. Go!" Respondent moves to the front of the car, pulls out pepper spray, trips, and falls. JM stays by the door; Ms. Guzman says through the partially opened window, "Babe, relax!"

- 04:59-05:11** Respondent aims pepper spray at Ms. Guzman and twice says, "I wouldn't move." After the male associate says, "roll your window up," Ms. Guzman begins rolling the window up. Respondent sprays once into the open window, keeps his hand on the nozzle, and steps back. JM repeatedly says, "What are you doing? Does anybody see what he's doing? He's macing my car!" Respondent repeatedly tells him, "Relax."
- 5:12-5:18** Ms. Guzman exits the vehicle while coughing. Respondent still wields the pepper spray in his right hand.
- 5:19-7:10** Respondent states, "I told you not to move." JM indicates that she did not move; rather, she rolled the window up. Respondent transfers the pepper spray to his left hand, laying it on his summons book. JM's friend appears to record Respondent with his phone as JM yells at Respondent.
- 7:11-10:13** Ms. Guzman's coughing increases in volume and frequency until she drinks water and stops coughing. Respondent receives a call from PO Ching and relates that he "has some disorderly people." JM continues yelling at, and about, Respondent, while Respondent resumes filling out the summons.
- 10:14-11:06** Over his radio, Respondent communicates his location and requests "one additional sector" for a "disorderly group," then continues writing.
- 11:07-11:30** Respondent pulls up Google Maps on his phone as PO Ching arrives, activates his body-worn camera, and approaches the car owner. PO Ching asks what happened and JM's friend recounts the car stop. PO Ching suggests to Respondent that Ms. Guzman "might need an ambulance."
- 11:31-12:03** Respondent puts his phone away and asks Ms. Guzman if she needs an ambulance. She does not reply and JM states he will confer with her on the matter. Respondent goes back on his phone.
- 12:04-14:59** PO Ching approaches Respondent. Respondent shares his version of events. The officers then discuss what they need to do to complete the summons.
- 15:00-17:33** Respondent and PO Ching approach JM Respondent requests the JM's identification. Respondent and the civilians dispute about what transpired during the stop with PO Ching serving as a mediator.

- 17:34-19:36** Ms. Guzman coughs and indicates that she needs to go to urgent care. PO Ching assures her that medical assistance will arrive on scene. JM resumes discussing the stop, and PO Ching states they will call a supervisor.
- 19:37-26:35** Respondent turns his attention to other officers who have arrived at the scene. He then returns to JM who is finishing up relaying his version of events. JM concludes his narrative, leading to everyone standing in relative silence as they await the arrival of Respondent's supervisor.
- 26:36-29:29** Sergeant Taleb Hossain arrives and approaches Respondent, who details the car stop and his actions to the sergeant.
- 29:30-29:43** Sergeant Hossain interrupts Respondent to direct Ms. Guzman to not go anywhere, wait near him, and provide identification.

Police Officer Ching's body-worn camera recording of this incident (CCRB Ex. 2) is not summarized here, as it captures the same events as Respondent's, beginning at 11:07, and is duplicative (CCRB Ex. 2, 11:07-29:43).

Surveillance Video

CCRB's Exhibit 5A is a recording obtained from a surveillance camera in the area of 59th Street, between Fifth Avenue and Madison Avenue. CCRB's Exhibit 5A captures the incident, beginning at 11:30, from a vantage point above the vehicles, facing the south side of 59th Street. CCRB's Exhibit 5B, beginning at 17:45, captures the front end of JM's BMW and movement by Ms. Guzman, Respondent and other police officers, but does not capture the interaction between Respondent, Ms. Guzman and JM

Lydia Guzman

Ms. Guzman testified that on August 28, 2021, she was a passenger in Joshua JM's car as they drove toward a clothing store on 59th Street, between Madison and Fifth Avenue. They were headed to meet another couple, whom they spotted on the sidewalk as her then-partner searched for parking. At some point, she recalled, JM double parked the

vehicle and stepped out to speak with the couple when she noticed Respondent approaching in a vehicle and double parking directly behind theirs (T. 16-17).

She explained that she stayed inside the car as Respondent approached. While she couldn't make out what they were saying at first, she remembered JM [REDACTED] seeming to yell at Respondent as she exited the vehicle. At that moment, she was unaware of the reason for Respondent's presence but noticed JM [REDACTED] was loud and asked him to calm down. She further recalled asking JM [REDACTED] what was happening, and he told her he was being issued a ticket. Throughout this exchange, she explained that she remained on the passenger side of the car (T. 18-19, 36).

Ms. Guzman testified that at some point, she ventured over to the driver's side of the car where JM [REDACTED] and Respondent were, but eventually made her way back to the passenger side. She got back into the vehicle and crossed from the passenger's seat to the driver's seat after being told by Respondent that she could go. She described that at the time she moved to the driver's seat, Respondent was standing between the front wheel and the window, which was "slightly" open. She recalled hearing Respondent say, "she can go, she can drive," but immediately after, she heard him say, "she can't go." She also heard JM [REDACTED] say "leave" and "go, go" at some point. Ms. Guzman explained that after hearing Respondent say she couldn't leave, she wanted to comply. She clarified that although she was in the driver's seat, the car was in park the entire time, and she had no intention of driving away after Respondent's instructions (T. 20-21, 38, 42-43, 45, 72).

At one point, she tried to exit the car, but JM [REDACTED] closed the door. Ms. Guzman saw Respondent reach for his belt, grab the mace, and drop it on the ground. With Respondent standing with the mace pointed in her direction, Ms. Guzman recalled JM [REDACTED] telling her to

roll up the window. She could not recall whether Respondent gave her a specific verbal warning to keep the window down. Despite this, she rolled up the window, and Respondent began “spraying the can” with one continuous spray. She described feeling hits to her “nose and mouth area, and a little in [her] eyes,” experiencing tightness and difficulty breathing. She then got out of the car and recalled JM [REDACTED] yelling at Respondent and asking him to call for medical help. An ambulance was called after a second officer arrived on the scene (T. 22-25).

During cross-examination, Ms. Guzman initially denied that JM [REDACTED] was giving Respondent a hard time while she was in the vehicle, mentioning that although he was illegally parked, “he had his flashers on.” However, after reviewing body-worn camera footage, she acknowledged that when JM [REDACTED] threatened to take the paper from Respondent’s hand and called him a “Bozo,” he was being disrespectful to the officer. She also further acknowledged that at the time, JM [REDACTED] was approximately 6’5” and weighed around 250 pounds (T. 27-32).

She explained that when she was evaluated by EMS personnel, they told her there was little they could do for her but provided her with a bottle of water. She later went to Presbyterian Hospital, where it was determined she experienced some redness, which resolved on its own, and she was sent home without further treatment. Ms. Guzman conceded that she had no permanent disabilities from this event but advised that she filed a civil lawsuit in relation to this matter; she is currently in therapy because the incident “heightened” her anxiety and caused her asthma to flare up (T. 15, 25, 68-69).

Credibility

I credit Respondent’s trial testimony as detailed, precise and logical. It was internally consistent and was corroborated by his body-worn camera video, as well as surveillance video obtained from nearby private security cameras. His concession to feeling overwhelmed in a

tense situation, where he faced persistent hostility from an aggressive subject, imbued his testimony with the ring of truth.

I also find Ms. Guzman's testimony credible, as her description of the actions Respondent took aligned with the body-worn camera video evidence, as well as Respondent's testimony. While she initially appeared to be minimizing the obviously unruly behavior JM displayed, when confronted with the video evidence, she conceded that he was disrespectful during the encounter.

Specification 1: Use of Pepper Spray

I find that CCRB has failed to meet its burden of proof, by a preponderance of the credible, relevant evidence, that Respondent unreasonably used force, specifically pepper spray, against Lydia Guzman, without police necessity.

Based upon the totality of the evidence, the record established that Respondent was performing a necessary, but usually unremarkable, duty at the time he encountered JM and Ms. Guzman: the enforcement of traffic regulations. According to his credible testimony, he was assigned to a solo summons car to ensure that 59th Street was free of vehicular obstruction to its three-lane traffic pattern. This required a lane of parked cars on the north side of the street leaving their parked positions to permit the flow of traffic eastbound. It was while performing this duty that he encountered JM who was double-parked illegally in the center lane of traffic. While his vehicle did have its hazard lights activated, that did not exempt him from being required to move his car. The record shows that as Respondent got out of his car, he warned JM that he was about to write tickets but that he would not start with JM's car. A reasonable person would recognize the importance of that statement as affording JM a degree of grace to move his car before it could be ticketed.

What Respondent could not have known at the moment of his initial contact with JM is that not only was he not disposed to accept Respondent's offer of temporary clemency but that he refused to acknowledge Respondent's authority to direct his movements. I note that Respondent was performing his duties alone, in uniform, and operating a marked police vehicle.

JM admitted, captured on Respondent's body worn camera video, that he waved [Respondent's] car to go around him as he remained double-parked. This act reveals JM's state of mind: refusing to cede his desired position on 59th Street to Respondent's authority to facilitate the unobstructed movement of vehicular traffic on that street, and openly contemptuous of Respondent's enforcement powers. JM challenged Respondent's decision to issue him a summons for double-parking as he obdurately remained double-parked. He berated Respondent in unflattering terms, referring to him as a "dick," and a "bozo." JM refused to permit Respondent to pass between his illegally parked vehicle and the vehicles parked on the north side of the street, blocking him with his body, and telling him to walk around his car using the lane of oncoming traffic. As Respondent attempted to write the summons for JM's car, he kept moving closer to Respondent and even interposed himself between the rear bumper of his car and Respondent, as Respondent appeared to be focused on the rear license plate.

It should be noted that JM was approximately 6'5" tall and weighed more than 250 pounds. Respondent testified credibly that he perceived JM to have a height, weight and youth advantage over him. Based upon CCRB's Exhibit 1, Respondent's perception that JM was belligerent and attempting to intimidate him was reasonable. While Respondent and JM engaged in a back-and-forth exchange where JM

relentlessly questioned the manner in which Respondent attempted to execute his duties and the basis for the issuance of a summons in a loud and aggressive manner, Respondent did not change his tone of his voice or his demeanor. It should be noted that Ms. Guzman, who was a passenger in JM's car, stepped out of the vehicle during the exchange and attempted to mollify JM to no avail. JM was joined in his verbal barrage by two other companions, a man and a woman. It is noteworthy that at no time did Respondent escalate the encounter, despite persistent provocation.

Respondent testified that as he stood near the front of JM's car, he became aware that Ms. Guzman had re-entered the car and moved into the driver's seat. He testified credibly that he was concerned that if she moved the car, he would be physically trapped between the front end of JM's car and the rear of a parked car to his right. When he moved toward the driver's door to grasp the handle and open it, JM pressed his hand on the door to shut it, wrestled Respondent's hand from the door handle, and told Ms. Guzman, "Bro. Go, go!" JM's physical actions caused Respondent to stumble backward and fall to the ground; as he stood up, he grabbed his pepper spray because he considered JM a threat. When Respondent pointed the pepper spray in the direction of the driver's door, where JM and his two friends were standing, he stated, "I wouldn't move if I were you" (T. 114; CCRB Ex. 1 at 4:56-4:58). At that point, JM directed Ms. Guzman to roll up the driver's window, which she attempted to do. Respondent's credible testimony established that the windows of JM's vehicle, including the windshield, were heavily tinted, preventing him from seeing Ms. Guzman clearly and making a judgement as to whether she was placing the car in drive and attempting to move it toward him.

I find that, at that moment, Respondent's fear that Ms. Guzman was about to move JM's vehicle toward him was reasonable based upon the facts available to him at that time. I now turn to the pivotal question before the Tribunal: whether the use of pepper spray toward Ms. Guzman was reasonable and based upon police necessity.

Patrol Guide procedure 221-07 limits the use of pepper spray by Member of Service to situations where they reasonably believe it is necessary to:

- a. Gain or maintain control of persons who are actively resisting arrest or lawful custody or exhibiting active aggression;
- b. Prevent individuals from physically injuring themselves, members of the service, or other persons;
- c. Establish physical control of a subject attempting to flee from arrest or custody;
- d. Establish physical control of an emotionally disturbed person (EDP); or
- e. Control a dangerous animal, by deterring an attack, to prevent injury to persons or animals present.

(P.G. 221-07 [1]).

Based upon the totality of the evidence, I find Respondent had two bases for deploying pepper spray against Ms. Guzman, both of which were reasonably supported by the information he had at the time. First, his credible testimony, supported by the body-worn camera recording, established that Ms. Guzman had re-entered the BMW and positioned herself in the driver's seat during a tense confrontation between Respondent, JM and two other associates of theirs who had injected themselves into the encounter. Once Respondent realized she was back in the car and was in a position to drive it away, he told her and JM that she could not leave. When he went to the driver's door to open it and order Ms. Guzman out of the car, JM wrestled Respondent's hand off the driver's door handle and told Ms. Guzman to leave. Under these circumstances, Respondent could reasonably believe that Ms. Guzman was about to flee in the BMW. Based upon the same facts, Respondent could also reasonably believe that deploying his pepper spray against Ms. Guzman would prevent her from driving forward into the

small space where his body was positioned between the BMW and a parked car, thereby avoiding injuring him.

I find that Respondent held his pepper spray up in a manner which caught the attention of Ms. Guzman, JM and their two associates; this gave them adequate notice that he would deploy the pepper spray if JM continued to advance toward him or Ms. Guzman drove forward.

Based upon: (1) their failure to acquiesce to his repeated requests to be permitted to write his summons without interference; (2) the manifestation of physical aggression by JM throughout the encounter; (3) the danger posed by the possibility of Ms. Guzman driving the BMW in a dangerous manner so close to Respondent's body; (4) the uncertainty of Ms. Guzman's response to JM urging her to drive away at the same time Respondent was telling her not to move; and (5) the fact that Respondent was working alone and numerically outnumbered, his decision to discharge his pepper spray at Ms. Guzman was both reasonable and necessary. While the use of pepper spray was not an ideal solution to the problem Respondent faced, it did appear to buy him time for his partner and other police officers to arrive to assist in gaining control of the situation.

Based upon the foregoing, I find Respondent Not Guilty of Specification 1.

Specification 2: Failure to Obtain Medical Treatment

I find that CCRB has failed to meet its burden of proof, by a preponderance of the credible, relevant evidence, that Respondent failed to obtain medical treatment for Lydia Guzman when requested, without police necessity.

Patrol Guide procedure 221-07 requires Members of Service, once they have deployed pepper spray, to "request response of Emergency Medical Service (EMS) once the situation is

under control” (P.G. 221-07 [3]). The person sprayed should also be advised that EMS is responding (P.G. 221-07[3][a]).

Based upon the totality of the evidence, I find that in the immediate aftermath of Respondent deploying the pepper spray against Ms. Guzman, the situation with JM and his two associates was far from under control. The body-worn camera evidence shows that JM's ire at being cited was only stoked by Respondent's use of force against Ms. Guzman. His verbal flagellation of Respondent only abated when Police Officer Ching arrived on scene, and he chose to redirect his outrage to a potential intercessor.

It is undisputed that Police Officer Ching made the call for an EMS response after he and Respondent discussed it briefly. CCRB's theory of prosecution, that Respondent had to personally request medical assistance, rather than through a fellow police officer, would require a hyper-technical application of Patrol Guide procedure 221-07, which this Tribunal will not ratify.

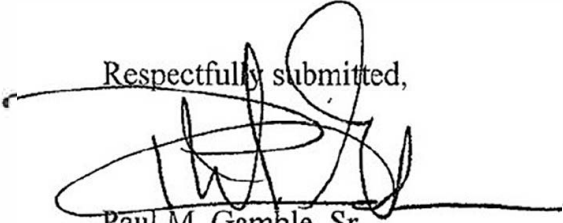
I find that once EMS responded, the delay in assessing Ms. Guzman was caused by Sergeant Hossain's prudent insistence that an evaluation be made of whether she was to be charged with a crime before releasing her to them.

Finally, I find that while Respondent did not personally inform Ms. Guzman that EMS was responding, Police Officer Ching made the radio request for an EMS response standing several feet away from Ms. Guzman and informed her that an ambulance was on the way (CCRB

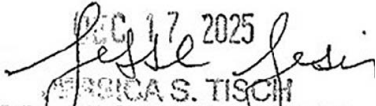
Ex. 1 at 17:43-18:00). I find that this action complied with the requirements of Patrol Guide procedure 221-07.

Based upon the foregoing, I find Respondent Not Guilty of Specification 2.

Respectfully submitted,


Paul M. Gamble, Sr.
Assistant Deputy Commissioner Trials

APPROVED


PATRICIA S. TISCH
POLICE COMMISSIONER